

WILDE v WHISTLER

BEING

AN ACRIMONIOUS CORRESPONDENCE

ON ART

BETWEEN

OSCAR WILDE

AND

JAMES A McNEILL WHISTLER

LONDON PRIVATELY PRINTED MCMVI

WILDE v WHISTLER

BEING

AN ACRIMONIOUS CORRESPONDENCE

ON ART

BETWEEN

OSCAR WILDE

AND

JAMES A McNEILL WHISTLER

LONDON PRIVATELY PRINTED MCMVI

The Project Gutenberg eBook of Wilde v Whistler

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Wilde v Whistler

Author: Oscar Wilde
James McNeill Whistler

Release date: December 31, 2022 [eBook #69674]
Most recently updated: October 19, 2024

Language: English

Original publication: United Kingdom: privately printed, 1906

Other information and formats: www.gutenberg.org/ebooks/69674

Credits: Tim Lindell, Donald Cummings and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK WILDE V
WHISTLER ***

WILDE v WHISTLER

BEING

AN ACRIMONIOUS CORRESPONDENCE

ON ART

BETWEEN

OSCAR WILDE

AND

JAMES A McNEILL WHISTLER

LONDON PRIVATELY PRINTED MCMVI

WILDE v WHISTLER

Four hundred copies on small quarto paper, and one hundred large paper copies on demy octavo paper, have been printed of this brochure.

WILDE v WHISTLER

BEING

AN ACRIMONIOUS CORRESPONDENCE

ON ART

BETWEEN

OSCAR WILDE

AND

JAMES A McNEILL WHISTLER

LONDON PRIVATELY PRINTED MCMVI

MR WHISTLER'S TEN O'CLOCK,

BY MR OSCAR WILDE.

“*RENGAINES!*”

Pall Mall Gazette, Feb. 21st, 1885.

Last night at Prince's Hall, Mr. Whistler made his first public appearance as a lecturer on Art, and spoke for more than an hour with really marvellous eloquence on the absolute uselessness of all lectures of the kind. Mr. Whistler began his lecture with a very pretty *aria* on pre-historic history, describing how in earlier times hunter and warrior would go forth to chase and foray, while the artist sat at home making cup and bowl for their service. Rude imitations of nature they were first, like the gourd bottle, till the sense of beauty and form developed, and, in all its exquisite proportions, the first vase was fashioned. Then came a higher civilisation of Architecture and Arm-chairs, and with exquisite design, and dainty diaper, the useful things of Life were made lovely: and the hunter and the warrior lay on the couch when they were tired, and, when they were thirsty, drank from the bowl, and never cared to lose the exquisite proportions of the one, or the delightful ornament of the other: and this attitude of the primitive anthropophagous Philistine formed the text of the lecture, and was the attitude which Mr Whistler entreated his audience to adopt towards Art. Remembering, no doubt, many charming invitations to wonderful private views, this fashionable assemblage seemed somewhat aghast, and not a little amused, at being told that the slightest appearance among a civilized people of any joy in beautiful things is a grave impertinence to all painters; but Mr. Whistler was relentless, and with charming ease, and much grace of manner, explained to the public that the only thing they should cultivate was ugliness, and that on their permanent stupidity rested all the hopes of art in the future.

The scene was in every way delightful; he stood there, a miniature Mephistopheles mocking the majority! he was like a brilliant surgeon

lecturing to a class composed of subjects destined ultimately for dissection, and solemnly assuring them how valuable to science their maladies were and how absolutely uninteresting the slightest symptoms of health on their part would be. In fairness to the audience, however, I must say that they seemed extremely gratified at being rid of the dreadful responsibility of admiring anything, and nothing could have exceeded their enthusiasm when they were told by Mr Whistler that no matter how vulgar their dresses were, or how hideous their surroundings at home, still it was possible that a great painter, if there was such a thing, could, by contemplating them in the twilight, and half closing his eyes, see them under really picturesque conditions, and produce a picture which they were not to attempt to understand, much less dare to enjoy. Then there were some arrows, barbed and brilliant, shot off, with all the speed and splendour of fireworks at the archaeologists, who spend their lives in verifying the birth-places of nobodies, and estimate the value of a work of art by its date or decay; at the art critics who always treat a picture as if it were a novel, and try and find out the plot; at dilettanti in general, and amateurs in particular, and (*O mea culpa!*) at dress reformers most of all. "Did not Velasquez paint crinolines? What more do you want?"

Having thus made a holocaust of humanity, Mr Whistler turned to Nature, and in a few minutes convicted her of the Crystal Palace, Bank Holidays, and a general overcrowding of detail, both in omnibuses and in landscapes; and then, in a passage of singular beauty, not unlike one that occurs in Corot's letters, spoke of the artistic value of dim dawns and dusks, when the mean facts of life are lost in evanescent and exquisite effects, when common things are touched with mystery and transfigured with beauty: when the warehouses become as palaces, and the tall chimneys of the factory seem like campaniles in the silver air.

Finally, after making a strong protest against anybody but a painter judging of painting, and a pathetic appeal to the audience not to be lured by the aesthetic movement into having beautiful things about them, Mr Whistler concluded his lecture with a pretty passage about Fusiyama on a fan, and made his bow to an audience which he had succeeded in completely fascinating by his wit, his brilliant paradoxes, and at times, his real eloquence. Of course, with regard to the value of beautiful surroundings I entirely differ from Mr Whistler. An artist is not an isolated

fact, he is the resultant of a certain *milieu* and a certain entourage, and can no more be born of a nation that is devoid of any sense of beauty than a fig can grow from a thorn or a rose blossom from a thistle. That an artist will find beauty in ugliness, *le beau dans l'horrible*, is now a commonplace of the schools, the argot of the atelier, but I strongly deny that charming people should be condemned to live with magenta ottomans and Albert blue curtains in their rooms in order that some painter may observe the side lights on the one and the values of the other. Nor do I accept the dictum that only a painter is a judge of painting. I say that only an artist is a judge of art; there is a wide difference. As long as a painter is a painter merely, he should not be allowed to talk of anything but mediums and megilp, and on those subjects should be compelled to hold his tongue; it is only when he becomes an artist that the secret laws of artistic creation are revealed to him. For there are not many arts but one art merely: poem, picture, and Parthenon, sonnet and statue—all are in their essence the same, and he who knows one, knows all. But the poet is the supreme artist, for he is the master of colour and form, and the real musician besides, and is lord over all life and all arts; and so to the poet beyond all others are these mysteries known; to Edgar Allan Poe and to Baudelaire, not to Benjamin West and Paul Delaroche. However, I would not enjoy anybody else's lectures unless in a few points I disagreed with them, and Mr Whistler's lecture last night was, like everything that he does, a masterpiece. Not merely for its clever satire and amusing jests will it be remembered, but for the pure and perfect beauty of many of its passages—passages delivered with an earnestness which seemed to amaze those who had looked on Mr Whistler as a master of persiflage merely, and had not known him, as we do, as a master of painting also. For that he is indeed one of the very greatest masters of painting, is my opinion. And I may add that in this opinion Mr Whistler himself entirely concurs.

OSCAR WILDE.

REFLECTION: It is not enough that our simple Sunflower flourish on his "figs"—he has now grafted Edgar Poe on the "rose" tree of the early American Market in "a certain milieu" of dry goods and sympathy; and "a certain entourage" of worship and wooden nutmegs.

Born of a Nation, not absolutely "devoid of any sense of beauty"—Their idol—cherished, listened to, and understood!—

Foolish Baudelaire!—Mistaken Mallarmé!

J. A. McN. W.

TENDERNESS IN TITE STREET

TO THE POET:

The World.

O SCAR—I have read your exquisite article in the *Pall Mall*.

Nothing is more delicate, in the flattery of “the Poet” to “the Painter,” than the *naïveté* of “the Poet” in the choice of his Painters—Benjamin West and Paul Delaroche!

You have pointed out that “the Painter’s” mission is to find “*le beau dans l’horrible*,” and have left to “the Poet” the discovery of “*l’horrible dans le beau*!”

J. A. McN. WHISTLER.

CHELSEA.

TO THE PAINTER:

The World.

DEAR BUTTERFLY—By the aid of a biographical dictionary, I made the discovery that there were once two painters, called Benjamin West and Paul Delaroche, who rashly lectured upon Art. As of their works nothing at all remains, I conclude that they explained themselves away.

Be warned in time, James; and remain, as I do, incomprehensible. To be great is to be misunderstood.—*Tout à vous*,

OSCAR WILDE.

REFLECTION: I do know a bird, who like Oscar, with his head in the sand, still believes in the undiscovered!

If to be misunderstood is to be great, it was rash in Oscar to reveal the source of his inspirations: the “*Biographical Dictionary*.”

J. A. McN. W.

TO THE COMMITTEE OF THE “NATIONAL ART EXHIBITION”

The World, Nov. 17, 1886.

GENTLEMEN—I am naturally interested in any effort made among painters to prove that they are alive—but when I find, thrust in the van of your leaders, the body of my dead 'Arry, I know that putrefaction alone can result. When following 'Arry, there comes on Oscar, you finish in farce, and bring upon yourselves the scorn and ridicule of your confrères in Europe.

What has Oscar in common with Art? except that he dines at our tables, and picks from our platters the plums for the pudding he peddles in the provinces. Oscar—the amiable, irresponsible, esurient Oscar—with no more sense of a picture than of the fit of a coat, has the courage of the opinions ... of others!

With 'Arry and Oscar you have avenged the Academy.

I am, gentlemen, yours obediently,

J. A. McN. WHISTLER.

Letter read at a meeting of this Society, associated for purposes of Art reform.

Enclosed to the Poet, with a line: “Oscar, you must really keep outside the radius.”

J. A. McN. W.

QUAND MÊME!

The World, Nov. 24, 1886.

ATLAS, this is very sad! With our James vulgarity begins at home, and should be allowed to stay there.

A vous,

OSCAR WILDE.

TO WHOM:

“A poor thing,” Oscar—“but” for once, I suppose “your own.”

J. A. McN. W.

THE HABIT OF SECOND NATURES

Truth, Jan. 2, 1890.

MOST VALIANT *TRUTH*—Among your ruthless exposures of the shams of to-day, nothing, I confess, have I enjoyed with keener relish than your late tilt at that arch-imposter and pest of the period—the all-pervading plagiarist!

I learn, by the way, that in America he may, under the “Law of ’84,” as it is called, be criminally prosecuted, incarcerated, and made to pick oakum, as he has hitherto picked brains—and pockets!

How was it that, in your list of culprits, you omitted that fattest of offenders—our own Oscar?

His methods are brought again freshly to my mind, by the indefatigable and tardy Romeike, who sends me newspaper cuttings of “Herbert Vivian’s Reminiscences,” in which, among other entertaining anecdotes, is told at length, the Story of Oscar simulating the becoming pride of author, upon a certain evening, in the club of the Academy students, and arrogating to himself the responsibility of the lecture, with which, at his earnest prayer, I had, in good fellowship, crammed him, that he might not add deplorable failure to foolish appearance, in his anomalous position, as art expounder, before his clear-headed audience.

He went forth, on that occasion, as my St. John—but, forgetting that humility should be his chief characteristic, and unable to withstand the unaccustomed respect with which his utterances were received, he not only trifled with my shoe, but bolted with the latchet!

Mr. Vivian, in his book, tells us, further on, that lately, in an article in the *Nineteenth Century* on the “Decay of Lying,” Mr. Wilde has deliberately and incautiously incorporated, “without a word of comment,” a portion of the well-remembered letter in which, after admitting his rare appreciation and amazing memory, I acknowledge that “Oscar has the courage of the opinions ... of others!”

My recognition of this, his latest proof of open admiration, I send him in the following little note, which I fancy you may think *à propos* to publish, as an example to your readers, in similar circumstances, of noble generosity in sweet reproof, tempered, as it should be, to the lamb in his condition:—

“Oscar, you have been down the area again, I see!

“I had forgotten you, and so allowed your hair to grow over the sore place. And now, while I looked the other way, you have stolen *your own scalp*! And potted it in more of your pudding.

“Labby has pointed out that, for the detected plagiarist, there is still one way to self-respect (besides hanging himself of course), and that is for him boldly to declare, ‘Je prends mon bien là où je le trouve.’

“You, Oscar, can go further, and with fresh effrontery, that will bring you the envy of all criminal *confrères*, unblushingly boast, ‘Moi, je prends *son* bien là où je le trouve!’”

J. A. McN. WHISTLER.

CHELSEA.

IN THE MARKET PLACE

Truth, Jan. 9, 1890.

SIR—I can hardly imagine that the public are in the very smallest degree interested in the shrill shrieks of “Plagiarism” that proceed from time to time out of the lips of silly vanity or incompetent mediocrity.

However, as Mr. James Whistler has had the impertinence to attack me with both venom and vulgarity in your columns, I hope you will allow me to state that the assertions contained in his letters are as deliberately untrue as they are deliberately offensive.

The definition of a disciple as one who has the courage of the opinions of his master is really too old even for Mr. Whistler to be allowed to claim it, and as for borrowing Mr. Whistler’s ideas about Art, the only thoroughly original ideas I have ever heard him express have had reference to his own superiority as a painter over painters greater than himself.

It is a trouble for any gentleman to have to notice the lucubrations of so ill-bred and ignorant a person as Mr. Whistler, but your publication of his insolent letter left me no option in the matter.

I remain, Sir, faithfully yours,

OSCAR WILDE.

PANIC

Truth, Jan. 16, 1890.

O TRUTH!—Cowed and humiliated, I acknowledge that our Oscar is at last original. At bay, and sublime in his agony, he certainly has, for once, borrowed from no living author, and comes out in his own true colours—as his own “gentleman.”

How shall I stand against his just anger, and his damning allegations! for it must be clear to your readers, that, besides his clean polish, as prettily set forth in his epistle, I, alas! am but the “ill-bred and ignorant person,” whose “lucubrations” “it is a trouble” for him “to notice.”

Still will I, desperate as is my condition, point out that though “impertinent,” “venomous,” and “vulgar,” he claims me as his “master”—and, in the dock, bases his innocence upon such relation between us.

In all humility, therefore, I admit that the outcome of my “silly vanity and incompetent mediocrity,” must be the incarnation: “OSCAR WILDE.”

J. A. McN. WHISTLER.

Mea culpa! the Gods may perhaps forgive and forget.

To you, *Truth*—champion of the truth—I leave the brave task of proclaiming again that the story of the lecture to the students of the Royal Academy was, as I told it to you, no fiction.

In the presence of Mr Waldo Story did Oscar make his prayer for preparation; and at his table was he entrusted with the materials for his crime.

You also shall again unearth, in the *Nineteenth Century Review* of Jan. 1889, page 37, the other appropriated property, slyly stowed away, in an article on “The Decay of Lying”—though why Decay!

To shirk this matter thus is craven, doubtless; but I am awe-stricken and tremble, for truly, “the rage of the sheep is terrible!”

J. A. McN. WHISTLER.

JUST INDIGNATION

O SCAR—How dare you! What means the disguise?

Restore those things to Nathan's, and never again let me find you masquerading the streets of my Chelsea in the combined costumes of Kossuth and Mr Mantalini!

J. A. McN. WHISTLER.

Upon seeing the Poet, in Polish cap and green overcoat, befrogged, and wonderfully befurred.

Transcriber's Notes:

Printer's, punctuation, and spelling inaccuracies were silently corrected.

Variable punctuation has been preserved (e.g. Mr/Mr.), where there is no predominant instance.

*** END OF THE PROJECT GUTENBERG EBOOK WILDE V
WHISTLER ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.